



File No.: EXP202305626

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: Mr. A.A.A. (hereinafter, the claimant) requested GOOGLE LLC (hereinafter, the respondent) to delete his data from several URLs.

***URL.1

***URL.2

The claimant alleges that the content of the disputed links may be harmful to the honor, privacy, and personal image of members of the National Police Corps, as well as to their safety and that of third parties.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The respondent has stated that "(...) it has re-examined Mr. A.A.A.'s request, and regarding the URLs subject to the claimant's complaint, it considers that they refer to information that presents public relevance and interest as they are published in accordance with the applicable regulations in the digital headquarters of the Official State Gazette and that, moreover, they clearly relate to the current professional activity of Mr. A.A.A. as a member of the National Police Corps.

In particular, the search results subject to Mr. A.A.A.'s complaint refer to (i) the Resolution of the General Directorate of the Police, which appoints student police officers to those who passed the entrance examination for the Basic Scale of the National Police Corps; (ii) the Resolution of the Secretary of State for Security, which appoints career officials of the National Police Corps, Basic Scale, second category, to the student police officers who have passed the legally established selection process. Both resolutions mention Mr. A.A.A. and name him, first, as a Student Police Officer and, second, as a career official of the National Police Corps."

"The public relevance of the information in question explains why the authorities have published it in the BOE, in accordance with the legally established procedure, so that it is accessible without restrictions and can also be located through search engines such as Google. Indeed, institutional websites play a crucial role in keeping society informed about matters that public authorities consider to be of interest to citizens. In light of the decision to make the information in question accessible without restrictions, it can be concluded that the authorities have determined that its public interest must prevail over Mr. A.A.A.'s right to data protection."

THIRD: The outcome of the transfer procedure indicated in the previous Fact did not satisfy the claims of the claimant. Consequently, on June 14, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, so that within ten working days it could present any arguments it deemed appropriate. This entity stated, in summary, that "(...) it has re-examined the content of the web pages to which the disputed search results refer and has reconsidered its initial decision. Consequently, Google LLC has proceeded with the blocking requested by Mr. A.A.A."

FOURTH: After examining the document submitted by the respondent, it is forwarded to the claimant, so that, within fifteen working days, he may formulate any arguments he considers appropriate, without any arguments having been made within the established period.

LEGAL GROUNDS

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for the Protection of Data is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding the...

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obligations that fall upon them, as well as addressing the claims presented by an interested party and investigating the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation for controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, prior to the admission of the claim that gives rise to this procedure, the claim was forwarded to the respondent for analysis, requiring a response to this Agency within one month and proving that the respondent had provided the claimant with the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

The result of this forwarding did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on June 14, 2023, for the purposes provided in Article 64.2 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the claim for processing. This admission agreement determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the claimant. After this period, the interested party may consider their claim accepted."

It is not deemed appropriate to clarify administrative responsibilities within the framework of a sanctioning procedure, whose exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with the present procedure the guarantees and rights of the claimant are duly restored.

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Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the interested party, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the interested party, and to express its reasons in case it does not intend to address such a request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication directed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right to be forgotten

The right to be forgotten is provided for in Article 17 of the GDPR, as well as in Article 93 of the LOPDGDD, concerning the right to be forgotten in Internet searches, which states, in its paragraph 1, the following:

"1. Everyone has the right for search engines on the Internet to remove from the lists of results obtained from a search conducted based on their name the links published that contained information relating to that person when they are inadequate, inaccurate, irrelevant, outdated, or excessive, or have become such over time, taking into account the purposes for which they were collected or processed, the time elapsed, and the nature and public interest of the information.

Similarly, action must be taken when the personal circumstances invoked by the affected party demonstrate the prevalence of their rights over the maintenance of the links by the Internet search service.

This right will persist even when the retention of the information published on the website to which the link directs is lawful and it has not been deleted beforehand or simultaneously."

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As stated in the Supreme Court Judgment of January 11, 2019, "This fundamental right to be forgotten is not an unlimited right - constitutional doctrine holds - because, although the Constitution does not expressly establish specific limits, based on the principle of the unity of the Constitution, the limits derived from the respect for other fundamental rights are applicable, among which the freedom of information proclaimed by Article 20 of the Constitution is of special relevance."

Regarding the nature of the search engine as a data controller, it should be noted that a search engine is a tool that facilitates internet users' access to certain web pages. To do this, the tool accesses a list of previously indexed links and offers the user a list of web addresses that refer to pages containing the words selected by the user.

The Judgment of the Court of the European Union of May 13, 2014, states the following:

Paragraph 28: "(...) by exploring the Internet in an automated, constant, and systematic manner in search of the information published there, the operator of a search engine collects such data, which it

extracts, records, and subsequently organizes within the framework of its indexing programs, stores on its servers, and, where applicable, communicates and facilitates access to its users in the form of search result lists. Since these operations are explicitly and unconditionally covered by Article 2, letter b), of Directive 95/46, they must be classified as processing in the sense of that provision, regardless of whether the search engine operator also performs the same operations with other types of information and does not distinguish between these and personal data."

Paragraph 33: "However, the search engine operator is the one who determines the purposes and means of this activity and, thus, of the processing of personal data that it carries out within this framework, and consequently, must be considered responsible for such processing under the aforementioned Article 2, letter d."

Paragraph 35: "On this particular matter, it should be noted that the processing of personal data carried out within the framework of a search engine's activity is distinct from that carried out by website publishers, which consists of displaying that data on a web page, and is added to it."

Consequently, the Court of Justice considers that the search engine operator is responsible for the processing of data by determining the purposes and means of its activity.

Regarding the possibility of exercising the right to erasure before the internet search engine without going to the website's data controller, the Court of Justice of the European Union, in its Judgment of May 13, 2014 (Case C-131/12), has stated:

"(...) data processing (...) carried out by the search engine operator may significantly affect the fundamental rights of respect for private life and the protection of personal data when the search conducted using that search engine is carried out based on the name of a..."

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natural person, insofar as such processing allows any internet user to obtain through the results list a structured view of the information related to this person that may be found on the Internet, which potentially affects a multitude of aspects of their private life, which, without such a search engine, would not have been interconnected or could only have been very difficult to interconnect, thus allowing the establishment of a more or less detailed profile of the person in question. Furthermore, the effect of the interference with the rights of the data subject is multiplied due to the significant role that the Internet and search engines play in modern society, which confer a ubiquitous character to the information contained in such a results list (see, in this regard, the judgment in eDate Advertising and others, C-509/09 and C-161/10, EU:C2011:685, paragraph 45).

"The Court of Justice maintains that the removal of links from the results list based on the name of the natural person affected by the dissemination of the news could have repercussions on the legitimate interest of internet users potentially interested in accessing the information in question, so it is necessary to seek a fair balance between this interest and the fundamental right of the affected person in accordance with Articles 7 and 8 of the Charter of Fundamental Rights of the European Union."

"(...) to respect the rights established by these provisions, provided that the requirements set out therein are genuinely met, the operator of a search engine is obliged to remove from the results list obtained after a search carried out based on the name of a person links to web pages published by third parties that contain information relating to this person, even in the event that this name or this information is not deleted prior to or simultaneously from these web pages, and, where applicable, even if the publication on such pages is lawful in itself."

Consequently, the processing of personal data carried out by the search engine operator allows a "name" to yield a results list that offers information about a person that may affect their private sphere. Once the data subject has submitted their request for the deletion of their personal data to the search engine, it must examine it and proceed, if applicable, to delete the specific links from the results list, without the need to first or simultaneously approach the website owner.

It also follows from the above that the conflicting rights and interests must be weighed in each specific case in order to determine which right prevails.

For the purpose of carrying out the balancing task, it should be recalled the Judgment of the Supreme Court, number 545/2015, of October 15, 2015, which states that the so-called "right to digital forgetfulness," which is a specification in this field of the rights derived from the quality requirements of personal data processing, does not allow each individual to construct a past to their liking, obliging web page editors or search engine operators to eliminate the processing of their personal data when associated with facts that are not considered positive.

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It is also not justified that those who expose themselves publicly can demand that a curriculum be constructed to their liking, controlling the discourse about themselves, removing negative information from the Internet, "positioning" the results of Internet searches at their whim, so that the most favorable ones occupy the top positions. If this thesis were accepted, it would severely disrupt the information mechanisms necessary for citizens to make their decisions in the democratic life of a country. Equally relevant is the doctrine contained in the ruling of the Audiencia Nacional, dated June 21, 2019, which specifies, in its fifth legal foundation, the following, in relation to information related to the professional life of the interested party:

(...) "General doctrine that is also developed in sections 81, 93, and 97 of the repeated Judgment of the CJEU - of May 13, 2014 - indicating that, notwithstanding that prevalence, a fair balance must be sought between the legitimate interest of internet users in having access to information in a search concerning a person's name and the fundamental rights of that person, and it may result that, for specific reasons such as the role played by the aforementioned interested party in public life, the interference with their fundamental rights is justified by the predominant interest of the public in having access to the information in question as a result of this inclusion.

In the case at hand, entering into the weighing of the rights and interests at stake, it must first be taken into account that it refers to the professional life of the claimant, a businessman, and not to personal life, as this is very relevant to modulate the intensity that the protection of the right regulated in art. 18.4 of the Constitution deserves, as this Chamber has pointed out in the Judgments of May 11, 2017 - appeal no. 30/2016 - and June 6, 2017 - appeal no. 1.797/2015.

In this regard, it is appropriate to refer to the guidelines of the Working Group of 29 on the right to be forgotten (Guidelines on the implementation of the Court of Justice of the European Union Judgment on "Google Spain and inc v. AEPD and Mario Costeja C-131/12), which states: "There is a basic difference between a person's private life and their public or professional life. The availability of information in search results becomes more acceptable the less information it reveals about a person's private life (...) information is more likely to be relevant if it relates to the professional life of the interested party, but it will depend on the nature of the interested party's work and the legitimate interest of the public in having access to that information through a search by their name (...)." When the information refers to private individuals, the Constitutional Court has declared that "even when the news concerning the subject matter relates to public interest, not all of its content is protected by the freedom of information - in this case, freedom of expression - but it may be deemed disproportionate to transmit those facts that, within the news, affect the honor or intimacy of the concerned person and that are revealed as 'manifestly unnecessary and irrelevant to the public interest of the information'" (STC 105/1990, of June 6, FJ 8, and 121/2002, of May 20, FJ 5).

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Furthermore, in order to assess the public relevance of the matter, it must be analyzed whether the published information continues to be of general interest due to the time that has elapsed. Regarding this issue, the National Court has stated in its judgment dated November 8, 2017, the following:

"Moreover, unlike the first link, an excessive amount of time has not passed between the date on which the cancellation request was made to the search engine and the date of the publication of the news. Indeed, since the date the news was published (August 2011) and the date on which the right to cancellation was exercised (July 2015), not even four years have passed, and the fact that it is an archive, given the terms that apply in this case and as previously stated, does not affect this conclusion."

In this regard, the aforementioned Judgment of the Court of Justice of the European Union states in paragraph 93 the following: "Even an initially lawful processing of accurate data may, over time, become incompatible with that Directive when such data is no longer necessary in relation to the purposes for which it was collected or processed. This is particularly the case when they are inadequate, irrelevant, or no longer relevant or are excessive in relation to these purposes and the time that has elapsed."

V

Conclusion

Once the documentation in the file has been examined, it is observed that after conducting a search based on the name of the claimant, a list of results is accessed in which the questioned URLs appear, publishing information and personal data that are not of public interest; therefore, the right to data protection of the claimant must prevail over the right to freedom of expression and information. Maintaining the dissemination of the information may discredit the personal life of the claimant, affecting the rights to honor, privacy, and protection of personal data; therefore, it is understood that the processing of data is not necessary, resulting in an infringement of the fundamental right regarding the private life of the claimant. For all these reasons, the personal data from the disputed URLs must be de-indexed and should not be accessible through an internet search concerning the name of the claimant, in order to avoid the dissemination of information that may be harmful to the invoked rights, with the autonomous right to data protection prevailing over freedom of expression and information as it lacks relevance and public interest.

In the case analyzed here, once the documentation in the file has been examined, it is observed that, although it is true that the respondent denied the right to deletion of several URLs exercised by the claimant, considering that they referred to information that seemed to present relevance and public interest, during the processing of the present procedure, it has reconsidered its decision and has proceeded to block the requested URLs that no longer appear.

Therefore, with the new measures adopted by the respondent, the rights of the affected party are duly restored, and consequently, it is appropriate to estimate the present claim on formal grounds as the request has been addressed extemporaneously, without requiring the performance of additional actions.

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In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ESTIMATE on formal grounds, the claim made by Mr. A.A.A. against GOOGLE LLC.

However, it is not appropriate to issue a new certification by the respondent, as the response has been issued extemporaneously, without requiring the performance of additional actions by the responsible party.

SECOND: TO NOTIFY this resolution to Mr. A.A.A. and to GOOGLE LLC.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for

Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.
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